

Dileep Singh Bafila And Another v. State of U.P. And Others

Allahabad High Court · Single Judge · 4 March 2022 · APPLICATION U/S 482 No. - 904 of 2022 · **Section 482 Cr.P.C. application allowed; entire proceedings of Sessions Case No. 247 of 2021 under Sections 135, 139 and 141 of the Electricity Act, 2003, including the summoning order dated 19.02.2021, quashed**

HEADNOTE

Where an FIR and Sessions trial under Sections 135, 139 and 141 of the Electricity Act, 2003 rest on alleged installation of poles and an overhead line in a housing-society compound without the distribution licensee's prior permission, and the accused show that the supervision charges demanded under Clause 4.6(e)(ii) of the U.P. Electricity Supply Code, 2005 have been paid, that the Junior Engineer sought closure of the FIR, and that counsel for the licensee and the informant have no remaining grievance, the High Court will quash the trial under Section 482 Cr.P.C. The Court treated the offences as compoundable and the electricity dues as paid, and held that no fruitful purpose would be served in keeping the proceedings pending. It did not decide whether the FIR disclosed a cognizable offence, did not cite Section 152, and did not resolve the numbering of the supervision-charge clause (counsel's 4.6(e)(ii); the quoted text is headed 4.5(e)(ii)).

FACTUAL SUMMARY

Dileep Singh Bafila and another applied under Section 482 Cr.P.C. at the Lucknow Bench to stay the summoning order dated 19 February 2021 of the Additional District Judge-4, Lucknow, in Sessions Case No. 247 of 2021, Case Crime No. 168 of 2020, Police Station Gomti Nagar, under Sections 135, 139 and 141 of the Electricity Act, 2003. A Junior Engineer of Madhyanchal Vidyut Vitran Nigam Limited had alleged that the applicants illegally installed 15 electricity poles in the compound of Bahujan Nirbal Varg Sahkari Greh Nirman Samiti Ltd., Makdoompur, Sector-1, Gomti Nagar Vistar, Lucknow, and laid an AVS/AVC line over those poles without the licensee's prior permission, causing revenue loss.

Counsel said petitioner no. 1 was Chairman of Himalayan Sahkari Awas Samiti Ltd. and that the licensee was entitled only to supervision charges under Clause 4.6(e)(ii) of the U.P. Electricity Supply Code, 2005 (quoted as 4.5(e)(ii)). Those charges were paid by the housing society through its Secretary. The Junior Engineer wrote on 22 March 2021 seeking closure of the FIR. Counsel for the licensee and the informant stated that no grievance remained.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.6(e)

Payment of Code supervision charges for developer-installed poles and line treated as settling the alleged revenue loss, supporting a 482 quash

QUESTION

Where a developer-society is prosecuted for installing poles and a line without prior permission, does subsequent payment of the licensee's demanded supervision charges under Clause 4.6(e)(ii) support quashing of the criminal trial?

HOLDING

The Court reproduced the Code provision that if the work is to be done by the developer/applicant/development authority, the licensee shall charge supervision charges (on estimated labour, material, handling and storage, excluding system loading and establishment costs) as a percentage of the cost-data-book estimates, to be deposited before work begins. It recorded that the supervision charges demanded by Madhyanchal Vidyut Vitran Nigam Limited for the poles and AVC line had been paid by Bahujan Nirbal Varg Sahkari Greh Nirman Samiti Ltd. through its Secretary, that there was thereafter no actual revenue loss, and that the dispute had come to an end. On that payment, together with the compoundable character of the offences and the licensee's no-objection, the Sessions proceedings were quashed. ¶ 6, 8-11

QUALIFIER

The Court did not fix the percentage of supervision charges, did not hold that unauthorised installation of poles and a line is only a civil Code matter, and did not adopt counsel's submission that no cognizable offence was made out.

FLAG Counsel cited 'Clause 4.6 (e) (ii)' of the U.P. Electricity Supply Code, 2005; the reproduced text is headed '4.5 (e) (ii)'. Keyed to catalog UP-2005::4.6(e) (developer/applicant supervision charges) without silently correcting the heading. Extract is unnumbered; paras 1–13 are sequential blocks of the 4.3.2022 order from 'Issuance of notice to opposite party no.3'. Lucknow Bench (Court No. 15). FIR says 'AVS line'; later paragraphs say 'AVC line'. Payment is attributed both to the society and, in the operative paragraph, to 'the petitioners'.

HOLDING-UNIT · EA2003::135

Compoundable ss. 135/139/141 trial quashed under s.482 after Code supervision charges paid and licensee does not pursue

QUESTION

Will the High Court, under Section 482 Cr.P.C., quash a Sessions trial under Sections 135, 139 and 141 where the alleged revenue loss has been met by payment of Supply Code supervision charges and the licensee and informant do not wish to pursue?

HOLDING

Yes, on these facts. The Court held that the offences under the Electricity Act, 2003 are compoundable, that all supervision charges / electricity dues had been paid, and that counsel for opposite parties nos. 2 and 3 agreed that no fruitful purpose would be served in keeping the trial pending. The entire proceedings of Sessions Case No. 247 of 2021, arising from Case Crime No. 168 of 2020, including the summoning order dated 19.02.2021, were quashed. The petition under Section 482 Cr.P.C. was allowed, and a copy was directed to the trial court. ¶ 11-12

QUALIFIER

The Court did not cite Section 152 of the Electricity Act, 2003 or a numbered Code compounding clause. It did not decide whether installing the poles and line without prior permission was a cognizable offence under Sections 135, 139 or 141.

FLAG FIR and Sessions case are under Sections 135, 139 and 141. Catalog has EA2003::135 and EA2003::152, not 139 or 141; keyed to 135 as the theft/unauthorised-abstraction offence charged. Compounding is stated without citing s.152. No precedent cited.

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy The Sessions trial under Sections 135, 139 and 141 was quashed under Section 482 Cr.P.C. because the Court treated the offences as compoundable, recorded that all electricity dues / supervision charges had been paid, and accepted the licensee's and informant's statement that they did not wish to pursue. ¶ 10-12

supervision-charges-on-a-fresh-connection The alleged revenue loss from installing 15 poles and an AVC line without prior permission was treated as met by payment of the supervision charges demanded under Clause 4.6(e)(ii) of the U.P. Electricity Supply Code, 2005 (quoted as 4.5(e)(ii)) for developer-executed work. That payment, with the licensee's no-objection, supported the quash. The case is colony electrification, not a consumer's application for a fresh service connection. ¶ 6, 8-11

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE FIR DISCLOSED A COGNIZABLE OFFENCE UNDER SECTIONS 135, 139 AND 141 OF THE ELECTRICITY ACT, 2003

Counsel submitted that, the licensee's entitlement being only to Clause 4.6(e)(ii) supervision charges, no cognizable offence was made out. The Court quashed on compoundability, payment and no-objection, without adopting that submission. ¶ 7, 11

NOT DECIDED — CORRECT NUMBERING OF THE SUPERVISION-CHARGE CLAUSE (4.6(E)(II) VERSUS 4.5(E)(II)) AND THE PERCENTAGE OR QUANTUM OF CHARGES

The clause is recited as quoted. No rate is fixed. The non-refund of earlier material-cost supervision charges in the quoted amendment is not applied. ¶ 6

NOT DECIDED — WHETHER A FORMAL COMPOUNDING ORDER UNDER SECTION 152 OF THE ELECTRICITY ACT, 2003, OR UNDER THE CODE COMPOUNDING MACHINERY, HAD BEEN PASSED

The Court stated that the offences are compoundable and that the dues had been paid. It did not record a compounding application, report, or s.152 order. ¶ 11

SCJ-3256 · Dileep Singh Bafila And Another v. State of U.P. And Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.